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CASE NAME: Fletes, v. American Honda Motor Co., Inc.

CASE NO.: 23SMCV05350

MOTION: Demurrer and Motion to Strike the Second Amended Complaint

HEARING DATE: 6/24/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v.

Mirida (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts

read the allegations liberally and in context. In a demurrer proceeding, the

defects must be apparent on the face of the pleading or via proper judicial

notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968,

994.) A demurrer tests the pleadings alone and not the evidence or other

extrinsic matters. Therefore, it lies only where the defects appear on the face

of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the

pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); Khoury v. Maly’s of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of

any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Id.*)

ANALYSIS

Defendant American

Honda Motor Co., Inc. demurs to the First, Second, Third, Fourth, and Fifth

Causes of Action asserted in the Second Amended Complaint (“SAC”) of Plaintiff

Noelia Fletes. Defendant also moves to strike the claim for punitive damages and other penalties.

Statute of Limitations - Warranties

To raise a statute of

limitations defense on demurrer, “the defect must clearly and affirmatively

appear on the face of the complaint; it is not enough that the complaint

shows that the action may be barred.” (Committee for Green Foothills v.

Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42, internal

quotation marks omitted.) In general, a statute of limitations begins to run

“when the cause of action is complete with all of its elements,” namely,

wrongdoing, causation, and resulting harm. (Norgart v. Upjohn Co.

(1999) 21 Cal.4th 383, 397.)

The four-year statute

of limitations of UCC § 2725 applies to claims brought under the Song-Beverly

Act, whether for express or implied warranty. (Krieger v. Nick Alexander

Imports, Inc. (1991) 234 Cal.App.3d 205, 213-14; see Mexia v. Rinker

Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1306 [four-year period of

Section 2725 applied].) UCC § 2725(2) states:

A

cause of action accrues when the breach occurs, regardless of the aggrieved

party's lack of knowledge of the breach. A breach of warranty occurs when

tender of delivery is made, except that where a warranty explicitly extends to

future performance of the goods and discovery of the breach must await the time

of such performance the cause of action accrues when the breach is or should have been discovered.

Thus, a cause of action

for breach of warranty generally occurs when the breach occurs “regardless of

the aggrieved party's lack of knowledge of the breach” and at the time of

tender of delivery. (UCC § 2725(2).) The discovery rule of Section 2725(2)

applies to express warranty claims, such that a cause of action under the SBA

accrues not on the date of sale, but rather when the plaintiff discovers or

should have discovered that the warrantor or its authorized repair facility was

unable to fix the warranty-covered defects after a reasonable number of repair

opportunities. (Krieger, *supra*, 234 Cal.App.3d at 218.) This exception

applies only to express warranties, since implied warranties

arise by operation of law rather than “explicit” extension of the warranty into

future performance. (Cardinal Health 301, Inc. v. Tyco Electronics Corp., (2008)

169 Cal.App.4th 116, 134.)

Song-Beverly further provides

that the duration of the implied warranties “shall be coextensive in duration

with an express warranty which accompanies the consumer goods, provided the

duration of the express warranty is reasonable; but in no event shall such

implied warranty have a duration of less than 60 days nor more than one year

following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above.”¹⁴²(Civ. Code, § 1791.1(c).) The Song-Beverly Act thus extends the existence of implied warranties “coextensively” with the express warranties up to one year following the sale. “To say that a warranty exists is to say that a cause of action can arise for its breach. Defining the time period during which the implied warranty exists, therefore, also defines the time period during which the warranty can be breached. Thus, by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery... this is a change from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (Mexia, supra, 174 Cal.App.4th at 1309.) Accordingly, the implied warranty’s co-extensive duration with the express warranties for up to one year after sale allows for the implied warranty to be breached up to one year after sale. (Id. at 1309-1311; see also Atkinson v. Elk Corporation of Texas¹⁴³(2006) 142 Cal.App.4th 212 [suit barred when filed more than¹⁴⁴five and a half¹⁴⁵years after the expiration of the one-year co-extensive warranty period].)

The SAC presents facts demonstrating that

the implied warranty action is untimely. Plaintiff purchased the Subject Vehicle on June 9, 2016. (SAC ¶ 6.) The express new vehicle warranty states that her “vehicle is covered for 3 years or 36,000 miles, whichever comes first.” (SAC Ex. A, at 9.) The express warranties also include a 5-year or 60,000 mile powertrain warranty, 7-year or 70,000 miles emission warranty, and a 5-year rust warranty. (Id. at pp. 10-34.) The implied warranty was therefore extended by one year to June 9, 2017, in light of the express warranties. Plaintiff had four years from that date to bring this action, or June 9, 2021. Plaintiff did not file this action until more than two years after the statutory period expired, on November 9, 2023. Thus, the implied warranty claim is barred on the face of the SAC.

Plaintiff attempts to plead various tolling theories. Plaintiff provides no facts supporting the purported class action American Pipe tolling. (SAC ¶¶ 37-38.) Plaintiff also only provides bare legal conclusions concerning the discovery rule tolling, which would not apply to the warranty claims in any event. (SAC ¶¶ 39-42.) Plaintiff alleges that Defendant's continuing repair attempts tolled the statute of limitations. (SAC ¶¶ 43-45; see ¶¶ 23-28 [repair attempts occurring on June 4, 2019, August 30, 2021, January 13, 2022, March 24, 2022, August 6, 2022, and October 17, 2022].) Plaintiff does not present sufficient facts (or

authority) concerning these repair efforts to establish that the repair efforts precluded Plaintiff from filing this action. At best, these facts might suggest tolling the period by a few days, but not the requisite two years. Lastly, Plaintiff relies on the court's emergency rules re: COVID-19. Emergency Rule 9(b), which if even applicable, would only toll the statute of limitations from April 6, 2020, until October 1, 2020, or about 178 days. Plaintiff fails to show that adding this 178-day period to the expired statutory period would save her claims here, even in conjunction with the time spent on the repair attempts.

As to the express warranty claims, defects and nonconformities manifested themselves within the applicable express warranty period, including but not limited to, sensing defects; electrical defects; engine defects; and transmission defects. (SAC ¶ 12.) The express warranty period expired on June 9, 2019, and thus the breach must have occurred on or before that date. Thus, Plaintiff would have, at most, four years from June 2019, to commence this action on express warranties absent tolling.

Plaintiff pleads that she did not discover the breach until recently. The "delayed discovery rule" may be invoked where a plaintiff establishes facts showing that a reasonable person under the circumstances would not have had information

sufficient to be put on inquiry concerning defendant's tort. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807-809.) "The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury if they have "information of circumstances to put [them] on inquiry " or if they have "the opportunity to obtain knowledge from sources open to [their] investigation." (Id. at 807–808, citing Gutierrez v. Mofid (1985) 39 Cal.3d 892, 896–897.) "When a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period." (Id. at 808–809.)

Plaintiff

discovered Defendant's wrongful conduct "shortly before" filing the Complaint, as the Vehicle continued to exhibit symptoms of defects following Defendant's unsuccessful attempts to repair them. (SAC ¶ 31.) The SAC alleges Defendant made repair attempts occurring on June 4, 2019, August 30, 2021, January 13, 2022, March 24, 2022, August 6, 2022, and October 17, 2022. (SAC ¶¶ 23-28.) After each visit, Defendant's repair facility represented that the Vehicle had been repaired. (Id.) Thereafter, the Vehicle continued to experience the defect symptoms. (Id., ¶ 29.) Plaintiff had no way of uncovering these defects since Defendant performed various diagnostics and/or undertook repairs and claimed that nothing was wrong with Subject Vehicle or that the Vehicle had been repaired. (Id., ¶ 30.) Such facts fairly suggest that Plaintiff did not discover or could not have discovered that Defendant (or its authorized repair facility) was unable to fix the warranty-covered defects after a reasonable number of repair opportunities until some point in 2022. (Krieger, *supra*, 234 Cal.App.3d at 218.) Therefore, the claim accrued sometime in 2022 and the November 2023 filing of this action would be within the four-year limitations period.

Accordingly, the demurrer on statute of limitations grounds is OVERRULED as to the first through third causes of action. The demurrer is SUSTAINED without leave to amend as to the fourth cause of action for breach of the implied warranty.

Express

Warranties

An action under the Song–Beverly Act has

the following elements: “(1) the product had a defect or nonconformity covered

by the express warranty; (2) the product was presented to an authorized

representative of the manufacturer for repair; and (3) the manufacturer or its

representative did not repair the defect or nonconformity after a reasonable

number of repair attempts.” (Robertson v. Fleetwood Travel Trailers of Cal.,

Inc. (2006) 144 Cal.App.4th 785, 799; Civ. Code, § 1790 et seq.)

The SAC alleges the ultimate facts of

each element. Plaintiff purchased the Vehicle, a consumer good, subject to

certain express warranties. (SAC ¶ 6.) Defects manifested in the vehicle

covered by the express warranties. (SAC ¶¶ 8-12.) Defendant and its

representatives failed to repair the defect or nonconformity after a reasonable

number of repair attempts. (SAC ¶¶ 23-29.)

Additionally, as to the third cause of

action, Civil Code section 1793.2(a)(3) requires

manufacturers of consumer goods for which the manufacturer has made an express

warranty to make available to authorized service and repair facilities

sufficient service literature and replacement parts to effect repairs during

the express warranty period. Defendant failed to

make available sufficient service literature and replacement parts to effect

repairs during the express warranty period. (SAC ¶ 63.)

Accordingly, the demurrer is OVERRULED as

to the express warranty claims.

Statute

of Limitations – Fraudulent Concealment

The

statute of limitations on a fraud cause of action is three years and generally

does not accrue until the discovery, by the aggrieved party, of the facts

constituting the fraud or mistake. (CCP § 338(d).) “In

California, fraud must be pled specifically; general and conclusory allegations

do not suffice. ‘Thus “ ‘the policy of liberal construction of the pleadings

... will not ordinarily be invoked to sustain a pleading defective in any

material respect.’ ” (Lazar v. Superior Court (1996) 12 Cal.4th 631,

645, citations omitted.) “The provision tolling operation of the statute

until discovery of the fraud has long been treated as an exception and,

accordingly, this court has held that if an action is brought more than three

years after commission of the fraud, plaintiff has the burden of pleading and

proving that he did not make the discovery until within three years prior to

the filing of his complaint.” (Hobart v. Hobart Estate Co. (1945) 26

Cal.2d 412, 437.) Thus, to avoid the application of the statute of

limitations here, Plaintiff must specifically plead facts to show (1) the time

and manner of discovery and (2) the inability to have made earlier discovery

despite reasonable diligence. (CAMSI IV v. Hunter Technology Corp.

(1991) 230 Cal.App.3d 1525, 1536-37.) “Mere conclusory assertions that delay in

discovery was reasonable are insufficient and will not enable the complaint to

withstand general demurrer.” (Id.)

Generally,

the statute of limitations on Plaintiff’s fraudulent concealment claim would

begin to run when Plaintiff purchased the Subject Vehicle in 2016. As

discussed, Plaintiff alleges she could not have discovered the facts underlying

her claims regarding defects until “shortly before filing this Complaint.” (SAC

¶ 31.) Additionally, Defendant concealed that the Subject Vehicle contained

defective sensing systems and Plaintiff therefore did not discover and could not

have discovered this defect through reasonable diligence. (Id., ¶ 82.) However,

Plaintiff does not provide specific facts concerning the time or manner of her

discovery of the truth of Defendant’s alleged fraud. While the above discussed

facts might have shown that Plaintiff did not discover the breach of the

warranties until recently, Plaintiff does not adduce how she learned of the

alleged fraud. Further, Plaintiff only pleads generic and conclusory

allegations as to the other theories of tolling, including class action

tolling, the repair doctrine, or estoppel.

Accordingly,

the demurrer is SUSTAINED.

MTS – Punitive Damages

Defendant

moves to strike punitive damages. Punitive damages were solely available under

the fraud cause of action. The motion is moot per the ruling on demurrer.

Alternatively, the court would grant the motion for failure to establish fraud

under Civil Code § 3294(c).

MTS – Civil Penalties

Defendant

attacks the request for civil penalties pursuant to Civil Code section 1794(c).

The SAC alleges that Defendant's failure to comply with its obligations under

Civil Code section 1793.2(d) was willful, in that Defendant Honda and its

representative were aware that they were unable to service or repair the

Vehicle to conform to the applicable express warranties after a reasonable

number of repair attempts, yet Defendant Honda failed and refused to promptly

replace the Vehicle or make restitution. (SAC ¶154.) Thus, the SAC pleads

entitlement to civil penalties under Civil Code section 1794(c).

Accordingly,

the motion to strike is DENIED as to this remedy.

MTS – Pre-judgment

Interest

Defendant

attacks the prejudgment interest award. Defendant does not posit any authority

showing that Song-Beverly damages are never certain, or capable of being

made certain by calculation. (Civ. Code § 3287(a); Duale v. Mercedes-Benz

USA, LLC (2007) 148 Cal.App.4th 718, 729; see Warren v. Kia Motors

America, Inc. (2018) 30 Cal.App.5th 24, 43-45 [amount of award was

dependent on jury's resolution of several disputed warranty-related issues and

could not have been determined before trial].) Multiple Courts of Appeal have

upheld awards of prejudgment interest in Song-Beverly Act cases, even where

liability was disputed. (See, e.g., Doppes v. Bentley Motors, Inc., (2009)

174 Cal.App.4th 1004, 1009-1010; Lukather v. General Motors, LLC (2010)

181 Cal.App.4th 1041, 1053.) The Doppes court commented that the Duale

court “did not hold prejudgment interest may never be recovered in a

Song–Beverly Consumer Warranty Act case, but only that prejudgment interest was

unrecoverable under section 3287 in that particular case because, under the

facts, the amount of damages could not be resolved except by verdict". (Doppes, supra, 174 Cal.App.4th at 1010.) Additionally, discretionary prejudgment interest may be awarded under Civil Code section 3287(b). Here, the pled facts do not establish that there are no damages which are certain or capable of being made certain. Certain damages may be established from the parties' sales contract. While the court may ultimately determine that there are no such certain damages due to the parties' disputes, the motion to strike is unsupported at this juncture.

Accordingly,

the motion to strike is DENIED as to this remedy.

Defendant

to file an answer within 20 days.